

BEFORE THE
FEDERAL MARITIME COMMISSION

YSN IMPORTS INC. d/b/a/ Flame King,

Complainant,

Docket No. 21-02

v.

FEIGE “PEGGY” OBERLANDER, U SHIPPERS
GROUP INC., and U SHIPPERS GROUP
MANAGEMENT CO., INC.

Respondents.

MOTION FOR EXTENSION OF DEADLINES IN REVISED SCHEDULING ORDER

Complainant YSN Imports Inc. d/b/a Flame King ("Complainant"), by and through their undersigned counsel, file this Motion for an extension of the deadlines set forth in the Third Amended Schedule dated November 18, 2021 ("Third Amended Schedule") and, in support, state as follows:

1. On December 16 and 17, 2021, Respondents and Complainant conducted the depositions of party and individual witnesses pursuant to the deadlines in the Third Amended Schedule. Due to the intervening holidays, Complainant only received the deposition transcript of Respondents' witness on Tuesday January 4. Complainant has not yet received the transcript of Complainant's witness. Both depositions must be reviewed and signed by the respective witnesses.

2. Complainant applied to the Presiding officer for service of two subpoenas *duces tecum* to third parties, which were signed by the Presiding officer on Monday January 3 and

Tuesday January 4, 2022. Complainant has arranged for service of the subpoenas to be effected today January 6, and the return date for both subpoenas is twenty (20) days from service or by January 26, 2022. As such, the Complainant requests additional time to receive and review responsive documents from the subpoenas for purposes of preparation of expert disclosures and expert reports in this action.

3. Complainant also served and filed today a motion to compel documents from Respondents in response to Complainant's requests of September 3, 2021, and several follow up emails and a meet and confer on the outstanding requested documents of December 15, 2021. Complainant's motion to compel seeks an order directing Respondents to produce certain financial records relating to the Association's revenue and profits, and financial transactions between the Association, Management, and Oberlander as further described in the motion. The Respondents oppose production of these documents. Complainant needs the requested financial records for purposes of preparation of expert disclosures and expert reports in this action.

4. Complainant requests the extension of deadlines as described below. Counsel for Respondents were contacted by email to request consent to file this application on a joint basis, and for agreement as to the proposed extended deadlines. As of the time of this filing, we have not been able to obtain consent or other response.

5. Based on the foregoing, Complainant respectfully requests that this Motion for an Extension of the Third Amended Schedule be granted to extend the deadlines as follows:

February 11	Identify experts and provide expert reports.
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February 18	Disclosure of rebuttal expert reports, if any.
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February 28	All discovery completed.
March 18	Complainant files brief with proposed findings of fact and appendix.
April 15	Respondents file opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact and appendix.
April 29	Complainant files reply brief with responses to Respondents' proposed findings of fact.

Dated: January 6, 2021

Respectfully submitted,

By: /s/ Vincent J. Foley

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CERTIFICATE OF SERVICE

The foregoing Motion to Extend Deadlines in the Third Amended Schedule was served by email on January 6, 2022 to the following counsel:

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